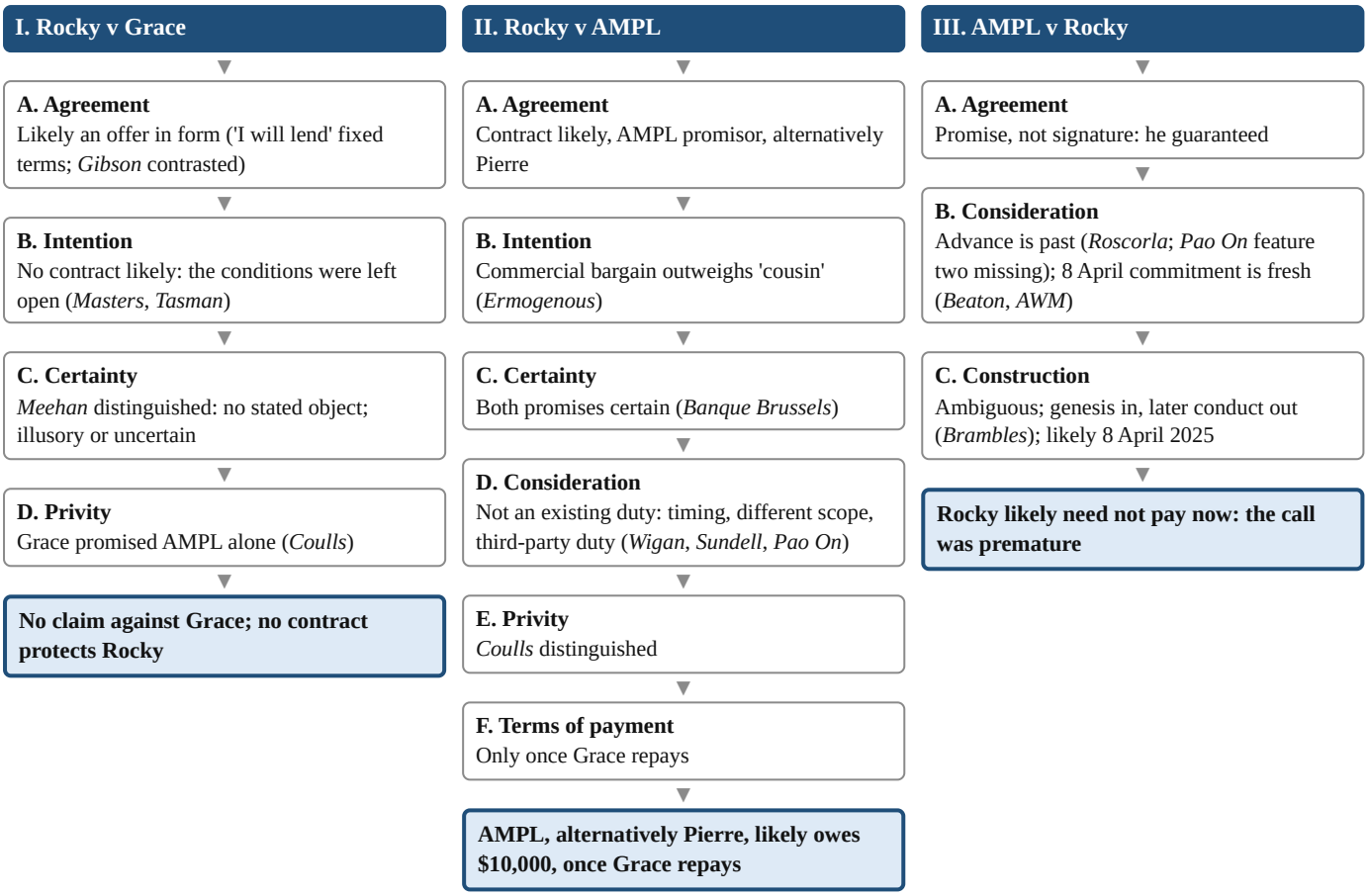
Rocky problem map

Companion to the final answer (*Rocky - LAWS1150 Mid-Term T3 2026.docx*). Body 1,488 words, 1,491 with the count line; 31 footnotes; verifier on the markdown and the .docx: 29 quotations, 0 FAIL, 0 CHECK. Sources: the readings (casebook extracts, the Pao On extract) and the slides only; no textbook citation anywhere; no earlier answer used.

1. Timeline: what happened and what each step settles

Date	What happened (the problem's words)	What it settles in the final
5 February 2024	Grace 'proposed that Rocky offer' a '$1 million dollar working capital loan for 2 years at 5% interest'; Rocky 'not interested in offering Grace a long-term loan'	An invitation to offer, refused (I.A); the email's '1 year' answers it
12 February 2024	'I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest subject to satisfactory conditions'; 'Please confirm agreement'; Grace: 'Confirmed.'	I.A: likely an offer in form; I.B: no intention, because the conditions were left open; I.C: illusory or uncertain. No advance by Rocky is recorded, so a contract would only oblige him: no contract protects Rocky, and he has no claim either way
27 February 2024	'Rocky asked' AMPL to advance $1,150,000; 'Pierre agreed to provide the money to Grace'; advanced 'on the same day'	II.A: AMPL performed Pierre's agreement; III.B: a past act, not understood then as the price of a guarantee; III.C: the genesis fact AMPL relies on
8 April 2024	Loan Agreement between AMPL and Grace: $1,150,000 at 4%, interest monthly, 'repayable at the expiry of 12 months'; Rocky 'personally guaranteed repayment of the Loan'; Pierre expected Rocky 'to ensure' prompt payment; Rocky: 'I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan'; 'Pierre agreed and the clause was included ... before it was signed by Grace and AMPL'	Part II: the $10,000 contract; III.A: Rocky gave the guarantee; III.B: AMPL's fresh 8 April commitment is its price; III.C: the 12 months are a term this instrument created
8 April 2024 to 8 February 2025	Monthly interest paid; Rocky 'would check in consistently'	Later conduct: cannot construe the term (III.C)
13 February to 5 March 2025	Rocky's emails; no reply; solicitor's demand for 'repayment of the principal amount under the Loan Agreement with AMPL'	I.D: Rocky is not Grace's promisee; III.C: later conduct, inadmissible on meaning
7 March 2025	Grace: 'I never signed anything with you'; 'I have until 8 April 2025 to repay'; 'I might not pay at all!'	I.D: right result, wrong test; III.C: inadmissible on meaning
9 March 2025	AMPL calls on 'the personal guarantee provided by Rocky'	III: guarantee likely binding, but the call was likely premature

2. Structure of the final answer



3. Issue by issue, as argued in the final

Node	Rule (source)	Both sides and the decisive reason	Conclusion
I.A Agreement	True construction: present promise or future possibility (*Gibson* 297–8)	Rocky: 'Confirming discussions', 'Potential', 'wait and see' read as minutes. Decisive: 'I will lend' fixed amount, date, term and rate, unlike 'may be prepared to sell'; 'Confirmed' answered 'Please confirm agreement'	Likely an offer; the qualifier decides whether Rocky was bound
I.B Intention	Objective (*Ermogenous* [25]); 'subject to' prima facie an overriding condition, no formula decisive (*Masters* 361–4); categories only 'intellectual aids' (*Tasman* [26])	Grace: co-developers since 2017, promissory words, no formal contract contemplated. Decisive: words leaving conditions to be settled prima facie disclose no intention	No contract likely, because the conditions were left open
I.C Certainty	*Meehan*: sale conditional on satisfactory finance upheld; Mason J left honesty or reasonableness open (580–2, 588–92)	Grace relies on *Meehan*. Decisive: *Meehan*'s terms were concluded and its satisfaction had an identified object (finance to complete); Rocky's conditions have none, leaving the court 'at large' (Mason J 587). Even on Grace's reading, his duty awaited his honest satisfaction, which nothing shows	Likely illusory or uncertain
I.D Privity	Only a promisee can enforce; signature neither sufficient nor necessary (*Coulls* 486–7; *Empirnall* 535–6)	Rocky: procured the advance; Grace applied the wrong test. Decisive: his guarantee does not make him promisee of Grace's promise, which runs to AMPL	No claim against Grace
II.A Agreement	Objective identification of the promisor (*Gibson* 297; *Ermogenous* [24]–[25])	AMPL: 'Pierre agreed'; on the guarantee reading its instrument omits the $10,000. Decisive: the bargain was oral; Pierre owned and controlled AMPL and sought, at its office, an undertaking protecting its loan	Contract likely, AMPL promisor, alternatively Pierre
II.B Intention	Objective; a family presumption at most identifies the onus (*Ermogenous* [25]–[26])	Pierre: a favour to a 'cousin'. Decisive: bargained for at a loan signing in AMPL's office	Intention likely

Node	Rule (source)	Both sides and the decisive reason	Conclusion
II.C Certainty	Definite meaning (*Upper Hunter* 436–7); an 'ensure' promise held enforceable (*Banque Brussels* 525–6, first instance)	The Loan Agreement fixes what Rocky must ensure; the $10,000 term fixes amount, payee and time	Both certain
II.D Consideration	Existing duty rule, 'at least' in its three-party form (*Wigan* 594); *Sundell* 327; third-party duty (Glidewell LJ in *Williams v Roffey* 15, reading *Pao On*)	AMPL (exchange reading): Rocky already guaranteed repayment, like *Sundell*. Answers: Pierre agreed before AMPL accepted the guarantee; the 'ensure' promise covers interest and promptness, the guarantee arguably only principal; if Pierre promised, the duty was owed to AMPL as a third party; practical benefit cannot assist	Likely good consideration
II.E Privity	A promise made to him, not his signature (*Coulls* 486–7)	AMPL likens Rocky to Mrs Coulls. Decisive: *Coulls* turned on no promise to her; Pierre accepted Rocky's own offer for payment 'to me directly'	Rocky likely the promisee
II.F Payment	Condition to be fulfilled first (*Meehan* 582)	Grace had not repaid; Rocky paying is not Grace repaying	Owed only once Grace repays
III.A Agreement	Promise, not signature (*Coulls* 487; *Empirnall* 535–6)	He 'personally guaranteed'; 'the personal guarantee provided by Rocky'	Rocky promised AMPL as guarantor
III.B Consideration	Past consideration (*Roscorla* 237); *Pao On*'s three features; a request alone makes no contract (*AWM* (PC) 550); detriment (*Beaton* 181, quoting *Currie v Misa*); consideration moves from the promisee (quoting *Thomas v Thomas*)	Features one and three met, two not shown. AMPL's 8 April commitment (12 months at 4%) is fresh; Rocky's 'merely recorded' answer fails because no terms for the advance are stated. Decisive: guarantee and credit settled in one instrument at a meeting Rocky attended; on the guarantee reading the $10,000 was also its price if AMPL promised	Guarantee likely binding
III.C Construction	Genesis admissible if ambiguous; later conduct and beliefs not (*Brambles* 163–4, 167–8, 191)	AMPL: 'recorded' money advanced on 27 February. Decisive: the period is likely a term the 8 April instrument created, and nothing ties it to the advance	Likely due 8 April 2025, finely balanced
Consequences	Further information: on-demand or on default	On demand: pay now. On default: call premature on the 8 April view. On 27 February view: pay if supported, 'ensure' promise broken. On 8 April view: 'ensure' broken only if March interest missed or no repayment by then	Rocky likely need not pay now

4. How the final was built

Stage	What it did	Result
Rules set from your feedback	Readings and slides as truth; no textbook citation; no earlier answer used; your LAWS1061 voice; strict IRAC; no conclusion first	LOOP.md
Rubric: two independent setter's guides, an operational criteria builder, a voice analyst, then a chief examiner who checked every disputed point in the source	Ten criteria turned into binary tests with caps; HD pass = every criterion 9+ and no cap, from two independent scorers, plus a clean source trace. The chief examiner corrected both guides' reading of *Meehan* (a condition within a party's power still binds) and of *Coulls*	RUBRIC.md, VOICE.md (your Part A: mean sentence 21.9 words, 2.4 clauses, semicolon or colon in 54%)
Three fresh drafts (X, Y, Z)	Written from scratch against the rubric	Two examiners: X 84.5 and 86.5, Y 85.5 and 86.0, Z 83.0 and 90.0; Z chosen as base
Round 2 (R1)	Merge; tracer found 3 errors; voice auditor: 46 of 61 sentences read as compressed shorthand, not you	81.5 and 83.0
Round 3 (R2)	Rewritten for clarity in your voice, Part I compressed	85.5 and 84.5; tracer: no certain error
Round 4 (R3)	Part I reframed for Rocky (a contract would only oblige him); III.B dilemma answered	87.0 and 89.0; one *Meehan* hedge error found
Round 5 (R4)	*Meehan* fixed; consistency across Parts; planted facts in lists	86.0 and 86.5; three slips found (eg the 4% belongs to 8 April, not the advance)
Round 6 (R5)	All three *Pao On* features applied; 'ensure' consistency; decisive reasons in every verdict	95.5 (PASS) and 95.5; one attribution error (Glidewell LJ, not the whole court)

Stage	What it did	Result
Round 7 (R6, then polish)	Remaining items from both scorers	98.5 PASS and 98.0 PASS; tracer: no certain error. Final polish applied both scorers' wording fixes

Waivers agreed by the scorers, and why

The *Pao On* pinpoint (only the textbook gives it); practical benefit's first-instance status and 'financial difficulties' (the route fails on its first element anyway); the oral-bargain and 27 February unilateral-contract routes (no result for Rocky); the repudiation flag; the check-ins as performance; an explicit vagueness counter in II.C; 'satisfactory' to both parties; *Todd v Nicol* against *Brambles* (NSW follows *Brambles*). Split decision: AMPL's later loan as conduct on formation; one scorer wanted it, the other held it cuts both ways ('Rocky asked' AMPL to lend, which Grace could call performance), so it was left out rather than argued one-sidedly.

5. Judgment calls left in the final

Point	Why it stands
Two readings of 'the clause'	The guarantee reading is preferred (the only clause named) and both are carried where they change the result
AMPL or Pierre as promisor	AMPL likely; Pierre carried in intention, consideration, privity and payment
8 April start date	Finely balanced; stated with what keeps it close (the admissible advance date)
On-demand guarantee	Not stated in the facts; put as further information with both results
Pao On cited to its report without a pinpoint	The materials print none; the textbook may not be used